

SECOND AMENDMENT TO LEASE

THIS SECOND AMENDMENT TO LEASE (the "**Amendment**") is made and entered into as of October 8, 2020, by and between **LA JOLLA CENTRE I LLC**, a Delaware limited liability company, hereafter called "**Landlord**," and **PHY WIRELESS, LLC**, a Delaware limited liability company, hereafter called "**Tenant**."

RECITALS

- A. Landlord and Tenant are parties to that certain lease dated February 13, 2020, which lease has been previously amended by a First Amendment to Lease dated June 8, 2020 (the "**First Amendment**") (collectively, the "**Lease**"). Pursuant to the Lease, Landlord has leased to Tenant space currently containing approximately **2,355** rentable square feet (the "**Premises**") described as Suite No. 875 in the building located at 4660 La Jolla Village Drive, San Diego, California (the "**Building**").
- B. The Lease by its terms expired on September 30, 2020 ("**Prior Expiration Date**"), and the parties desire to retroactively extend the Term of the Lease, all on the following terms and conditions.

NOW, THEREFORE, in consideration of the above recitals which by this reference are incorporated herein, the mutual covenants and conditions contained herein and other valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Landlord and Tenant agree as follows:

- I. **Extension.** Retroactively as of October 1, 2020, the Term of the Lease is hereby extended and shall expire on March 31, 2021 ("**Extended Expiration Date**"), unless sooner terminated in accordance with the terms of the Lease. That portion of the Term commencing the day immediately following the Prior Expiration Date ("**Extension Date**") and ending on the Extended Expiration Date shall be referred to herein as the "**Extended Term**".
- II. **Basic Rent.** As of the Extension Date, the schedule of Basic Rent payable with respect to the Premises during the Extended Term is the following:

Months of Term or Period	Monthly Rate Per Square Foot	Monthly Basic Rent
10/1/20 to 3/31/21	\$3.60	\$8,478.00

All such Basic Rent shall be payable by Tenant in accordance with the terms of the Lease.

- III. **Project Costs and Property Taxes.** N/A
- IV. **Additional Security Deposit.** No additional security deposit shall be required in connection with this Amendment.
- V. **Condition of the Premises.** Tenant acknowledges that it is currently occupying the Premises and that it is satisfied with the condition thereof. Tenant waives any right or claim against Landlord arising out of the condition of the Premises.
- VI. **Parking.** Notwithstanding any contrary provision in the Lease, during the Extended Term, Landlord shall lease to Tenant, and Tenant shall lease from Landlord, a minimum of 5, but no more than 8 unreserved parking passes at the rate of \$80.00 per pass, per month.
- VII. **SDN List.** Tenant hereby represents and warrants that neither Tenant nor any officer, director, employee, partner, member or other principal of Tenant (collectively, "**Tenant Parties**") is listed as a Specially Designated National and Blocked Person ("**SDN**") on the list of such persons and entities issued by the U.S. Treasury Office of Foreign Assets Control (OFAC). In the event Tenant or any Tenant Party is or becomes listed as an SDN, Tenant shall be deemed in breach of the Lease and Landlord shall have the right to terminate the Lease immediately upon written notice to Tenant.
- VIII. **Repayment of Deferred Rent.** Section III.B of the First Amendment is hereby deleted in its entirety and the following substituted in lieu thereof:

"B. **Repayment.** Tenant shall repay to Landlord the total Deferred Rent (i.e. \$12,717.00) in 6 equal consecutive monthly installments of \$2,119.50, commencing as of October 1, 2020 and ending March 31, 2021, which payments shall be in addition to and payable concurrently with the Basic Rent then due under the Lease."

- IX. **GENERAL.**
 - A. **Effect of Amendments.** The Lease shall remain in full force and effect except to the extent that it is modified by this Amendment.
 - B. **Entire Agreement.** This Amendment embodies the entire understanding between Landlord and Tenant and can be changed only by a writing signed by Landlord and Tenant. There have been no additional oral or written representations or agreements.

Under no circumstances shall Tenant be entitled to any rent abatement, improvement allowance, leasehold improvements, or any similar economic incentives that may have been provided Tenant in connection with entering into the Lease, unless specifically set forth in this Amendment.

- C. Counterparts; Digital Signatures. If this Amendment is executed in counterparts, each is hereby declared to be an original; all, however, shall constitute but one and the same amendment. In any action or proceeding, any photographic, photostatic, or other copy of this Amendment may be introduced into evidence without foundation. The parties agree to accept a digital image (including but not limited to an image in the form of a PDF, JPEG, GIF file, or other e-signature) of this Amendment, if applicable, reflecting the execution of one or both of the parties, as a true and correct original.
- D. Defined Terms. All words commencing with initial capital letters in this Amendment and defined in the Lease shall have the same meaning in this Amendment as in the Lease, unless they are otherwise defined in this Amendment.
- E. Authority. If Tenant is a corporation, limited liability company or partnership, or is comprised of any of them, each individual executing this Amendment for the corporation, limited liability company or partnership represents that he or she is duly authorized to execute and deliver this Amendment on behalf of such entity and that this Amendment is binding upon such entity in accordance with its terms.
- F. California Certified Access Specialist Inspection. Pursuant to California Civil Code § 1938, Landlord hereby states that the Premises have not undergone inspection by a Certified Access Specialist (CASp) (defined in California Civil Code § 55.52(a)(3)). Pursuant to Section 1938 of the California Civil Code, Landlord hereby provides the following notification to Tenant: "A Certified Access Specialist (CASp) can inspect the subject premises and determine whether the subject premises comply with all of the applicable construction-related accessibility standards under state law. Although state law does not require a CASp inspection of the subject premises, the commercial property owner or lessor may not prohibit the lessee or tenant from obtaining a CASp inspection of the subject premises for the occupancy or potential occupancy of the lessee or tenant, if requested by the lessee or tenant. The parties shall mutually agree on the arrangements for the time and manner of the CASp inspection, the payment of the fee for the CASp inspection, and the cost of making any repairs necessary to correct violations of construction related accessibility standards within the premises."
- G. Attorneys' Fees. The provisions of the Lease respecting payment of attorneys' fees shall also apply to this Amendment.
- H. Brokers. Section 26(f) of the Lease is amended to provide that the parties recognize the following parties as the brokers who negotiated this Amendment, and agree that Landlord shall be responsible for payment of brokerage commissions to such brokers pursuant to its separate agreements with such brokers: Irvine Management Company ("**Landlord's Broker**") is the agent of Landlord exclusively and RE:Align, Inc. ("**Tenant's Broker**") is the agent of Tenant exclusively. By the execution of this Amendment, each of Landlord and Tenant hereby acknowledge and confirm (a) receipt of a copy of a Disclosure Regarding Real Estate Agency Relationship conforming to the requirements of California Civil Code 2079.16, and (b) the agency relationships specified herein, which acknowledgement and confirmation is expressly made for the benefit of Tenant's Broker. By the execution of this Amendment, Landlord and Tenant are executing the confirmation of the agency relationships set forth herein. The warranty and indemnity provisions of Section 26(f) of the Lease, as amended hereby, shall be binding and enforceable in connection with the negotiation of this Amendment.
- I. Execution of Amendment. Submission of this Amendment by Landlord is not an offer to enter into this Amendment but rather is a solicitation for such an offer by Tenant. Landlord shall not be bound by this Amendment until Landlord has executed and delivered the same to Tenant.
- J. Nondisclosure of Terms. Tenant agrees that neither Tenant nor its agents or any other parties acting on behalf of Tenant shall disclose any matters set forth in this Amendment or disseminate or distribute any information concerning the terms, details or conditions hereof to any person, firm or entity without obtaining the express written consent of Landlord.

[SIGNATURES ARE ON FOLLOWING PAGE]

IN WITNESS WHEREOF, Landlord and Tenant have duly executed this Amendment as of the day and year first above written.

LANDLORD:

LA JOLLA CENTRE I LLC,
a Delaware limited liability company

DocuSigned by:
Steven M. Case
By: F2AEB2D5FE85486...
Steven M. Case
Executive Vice President
Office Properties

TENANT:

PHY WIRELESS, LLC,
a Delaware limited liability company

DocuSigned by:
[Signature]
By: 321A782C11CE4C6...
Printed Name: Tom Horgan
Title: CEO

DocuSigned by:
[Signature]
By: 8B82214E93EF49A...
Kristopher J. Kopensky
Vice President, Operations
Office Properties

By:
Printed Name:
Title:

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